2023 LIIA Child Level Data DSAs

This is the data sharing agreement. It has been signed electronically on a portal rather than a wet ink signature. This copy is published as the effective copy. The facts that it is unsigned and appears completed is simply because the signature is undertaken generically on an information sharing portal.

DATA PROCESSING AGREEMENT

Background

The London Innovation and Improvement Alliance (LIIA) is a standing partnership of London Local Authorities, working together for the benefit of vulnerable children in the capital. Part of the LIIA project is a pan-London Sector-Led Improvement analysis team, hosted at Waltham Forest Borough Council, who produce pan-London analyses for the London Directors of Children's Services.

A successful pilot phase ran in Jan-March 2021 with Enfield, Islington, Merton, Wandsworth, Richmond, and Kingston to create a process to safely, legally, and ethically take in individual-level data where appropriate, and create analyses based on it.

Building on the learning from the pilot phase, this Agreement provides the basis to expand the project to cover all 32 London Boroughs and the City of London Corporation. This will create an infrastructure that has the legal and ethical framework to enable child-level data sharing and a secure & efficient data network that makes this practical and accessible for each LA in the LIIA without increasing burdens or cost unnecessarily or disproportionally.

The infrastructure is designed to provide impact at scale, while maximising process efficiency and data security. It represents a key outcome of the Pan London Data Accelerator Programme.

Data specialists Social Finance are advising, with a focus on ensuring that the process embeds the principles of privacy by design, that the processing remains proportionate to the benefits, and that the process can be set up with the minimum level of additional work for LA teams.

Expanding the project to the whole of London requires a robust and secure data hosting infrastructure to facilitate the uploading, processing, and analysing of child-level data from multiple local authorities. The London Datastore, a data-sharing platform created by the London Greater Authority, provides such an infrastructure and will be the key partner for hosting and processing LA data.

The overall framework will have LAs deposit data on the London Datastore, where it will be processed to create pan-London datasets, which will also be stored on the London Datastore. This Agreement will document and authorise this infrastructure. Access to pan-London datasets will be granted on a case-by-case basis to named individuals at 'analytical partners' (sub-processors as described by Clause 10.1) to conduct further data transformation and dissemination of analytical outputs. Authorisations for these analytical partners will be managed as additional Schedules to this Agreement.

This technical and legal framework has the endorsement of the LIIA board and Information Governance for London.

Q2 2023 amendments

The LIIA Child Level Data Project has now launched, with all 33 London Boroughs signed up to share data and data from the SSDA903 shared by all Boroughs for one of the three starting use cases, Pan-London Sufficiency Analysis. Reporting from this use case has also gone live and has being shared with approx. 100 users across London Boroughs.

Changes to the agreement are being proposed that will make amendments to the core data flows and to existing use cases, and will also add new use cases to the platform, following the approval of the LIIA Board.

In line with the process established with Information Governance for London, these amendments will be scrutinised by one or more members of Information Governance for London, before being reviewed by the group in two monthly meetings. Only following endorsement by the body will each LA be asked to approve these changes through Information Sharing Gateway, making them live changes to the agreement.

One of the changes is to the existing data flow structure, with the data ingress, processing and egress role previously played by GLA (the London DataStore) now taken on by Social Finance, who are building

a novel data platform for this purpose. The reason for this change is that the London Data Store, while robust at dealing with open access data, lacks some of the primary security features necessary for handling data containing personally identifiable information. The full details of this will be described in an amended Schedule 2 of this agreement. As this is a significant change to the existing agreement, two members of Information Governance for London are taking an active role in the scoping and development of this platform to ensure that it meets the data security standards necessary for the data being shared.

Changes to this agreement for the Q2 2023 amendments can be found:

1. Amendments to sub-processor list: Schedule 1 (amended schedule)
2. Amendments to data platform: Schedule 2 (replacement of old schedule)
3. Amendments to pan-London Sufficiency Analysis: Schedule 5 (amendments to schedule)

Agreement

This agreement ("**Agreement**") is entered into on SIGNING DATE between **London Borough of <enter LA name>** ("**CONTROLLER**") and **London Councils** ("**PROCESSOR**"), under which PROCESSOR receives personal data (as defined below) for the purpose of providing services. PROCESSOR will receive personal data from or on behalf of CONTROLLER the processing of which is covered by the Data Protection Legislation (as defined below). PROCESSOR agrees to protect such personal data as required by this Agreement and to enforce the same terms in agreements with all and any sub-processors acting on its behalf.

In consideration of one peppercorn, receipt of which is acknowledged, PROCESSOR shall comply with the security, confidentiality and other obligations imposed on it under this Agreement.

1. **Definitions – Summary.**

1.1. "**Data Protection Legislation**" means any data protection legislation from time to time in force in the United Kingdom including, but not limited to, the UK GDPR – which means the retained EU law version of the General Data Protection Regulation (EU 2016/679) (EU GDPR), Data Protection Act 2018, any legislation which succeeds that Act, and any other directly applicable European Union data protection or privacy regulations (for as long as, and to the extent that, the law of the European Union has legal effect in the United Kingdom), and, where applicable, guidance and codes of practice issued by the Information Commission Office and any relevant data protection supervisory authority or authorities. For purposes of this Agreement, "**data subject**," "**personal data**," **"special category data," "personal data breach**," "**processing**," "**controller**," and "**processor**" have the meanings given to them in the UK GDPR.

1.2. In this Agreement the following words and phrases shall have the following meanings, unless expressly stated to the contrary:

a) "Act" means the Data Protection Act 2018 (DPA18);

b) "Authorised Representatives" means the nominated lead officer representing the CONTROLLER and the PROCESSOR with delegated authority to handle the day-to-day matters arising from this Agreement;

c) "Data" means the personal and special category data supplied by the CONTROLLER to the PROCESSOR;

d) "FOIA" means the Freedom of Information Act 2000, as amended;

e) "UK GDPR" means the retained EU law version of the General Data Protection Regulation ((EU) 2016/679) (EU GDPR) as it forms part of the law of England and Wales, Scotland and Northern Ireland by virtue of section 3 of the European Union (Withdrawal) Act 2018 and as amended by Schedule 1 to the Data Protection, Privacy and Electronic Communications (Amendments etc) (EU Exit) Regulations 2019 (SI 2019/419);

f) "Parties" means the parties to this Agreement, namely the CONTROLLER and the PROCESSOR;

g) "Pseudonymised or Pseudonymised data" bears the meaning in Article 4.5 of the UK GDPR;

h) "Request for Information" means a request for information or a request under FOIA.

2. **Term.**

2.1. This Agreement will remain in full force and effect unless the Agreement is terminated earlier by either party in accordance with Clause 2.2 below.

2.2. Either party may terminate this Agreement by giving thirty (30) days' prior written notice to the other party.

2.3. For the avoidance of doubt, the obligations of confidentiality imposed on the parties by this Agreement shall continue in full force and effect after the expiry of this Agreement.

2.4. Upon termination or once the purpose outlined in Schedules 3 onwards is achieved, PROCESSOR shall destroy and delete the personal, special category and pseudonymized data it received in accordance with such services. Both parties shall agree on the destruction process, ensuring that it meets standards including but not limited to the following:

a) The personal data is completely removed from all physical and electronic systems, including any back up, storage media and archiving systems;

b) All personal data on hardware is securely deleted and the hardware sanitized prior to re-use by PROCESSOR; and

c) Items deemed for refurbishment and/or re-use go through a full diagnosis, test and data cleansing process.

PROCESSOR shall confirm in writing that it has performed the necessary actions to destroy all copies of the personal data, giving full details of the actions taken and dates carried out.

3. **Roles of the Parties.**

3.1. Both parties will comply with all applicable requirements of the Data Protection Legislation.

3.2. This Agreement is in addition to, and does not relieve, remove or replace, a party's obligations under the Data Protection Legislation.

3.3. The parties agree that, for purposes of the Data Protection Legislation and as between the parties, CONTROLLER will be the controller of personal data and PROCESSOR will be the processor of personal data.

4. **Scope.**

4.1. The scope, nature and purpose of processing are defined in Schedules 3 onwards to this document, with each schedule individually authorized by the Director of Children's Services of the CONTROLLER.

5. **Restrictions.**

5.1. The provision of personal and/or special category data will be strictly limited to the purposes outlined in Schedules 3 onwards and will not be further processed by the PROCESSOR without CONTROLLER's prior written authorisation.

5.2. Where possible anonymous data will be provided by CONTROLLER to PROCESSOR, however, both parties acknowledge that in certain circumstances personal and special category data will be shared.

5.3. Access to the personal and special category data will be restricted to staff members of PROCESSOR who are directly involved in the processing of the personal and special category data for the purposes of project

5.4. PROCESSOR will not take any steps to contact any data subjects, unless with CONTROLLER'S prior authorization.

6. **Data Flows.**

6.1. Without prejudice to the generality of clause 3, CONTROLLER will ensure that it has all necessary appropriate consents and notices in place to enable lawful transfer of personal data to PROCESSOR for the duration and purposes of this Agreement.

6.2. Data flows and security are further detailed in Schedule 2.

7. **Processor Obligations.** Without prejudice to the generality of clause 3, PROCESSOR shall, in relation to any personal and special category data processed in connection with the performance by PROCESSOR of its obligations under this Agreement:

7.1. process personal data only on the written instructions of CONTROLLER unless PROCESSOR is required by any Data Protection Legislation. Where PROCESSOR is relying on Data Protection Legislation as the basis for processing personal data, PROCESSOR shall promptly notify CONTROLLER of this before performing the processing required by the Data Protection Legislation unless the Data Protection Legislation prohibit PROCESSOR from so notifying CONTROLLER;

7.2. ensure that it has in place appropriate technical and organisational measures to protect against unauthorised or unlawful processing of personal data and against accidental loss or destruction of, or damage to, personal data, appropriate to the harm that might result from the unauthorised or unlawful processing or accidental loss, destruction or damage and the nature of the data to be protected, having regard to the state of technological development and the cost of implementing any measures (those measures may include, where appropriate, pseudonymising and encrypting personal data, ensuring confidentiality, integrity, availability and resilience of its systems and services, ensuring that availability of and access to personal

data can be restored in a timely manner after an incident, and regularly assessing and evaluating the effectiveness of the technical and organisational measures adopted by it);

7.3. ensure that all personnel who have access to and/or process personal data are (i) obliged to keep the personal data confidential and (ii) aware of their responsibilities and are suitably trained in connection with processing the personal and special category data;

7.4. not transfer any personal and special category data outside of the United Kingdom or the European Union unless the prior written consent of the CONTROLLER has been obtained and the following conditions are fulfilled:

a) PROCESSOR has provided appropriate safeguards and/or permissions in relation to the transfer;

b) the data subject has enforceable rights and effective legal remedies;

c) PROCESSOR complies with its obligations under the Data Protection Legislation by providing an adequate level of protection to any personal and special category data that is transferred; and

d) PROCESSOR complies with reasonable instructions notified to it in advance by CONTROLLER with respect to the processing of the personal data;

7.5. assist CONTROLLER, in compliance with legislation, in responding to any request from a data subject and in ensuring compliance with its obligations under the Data Protection Legislation with respect to security, breach notifications, impact assessments and consultations with supervisory authorities or regulators;

7.6. notify CONTROLLER immediately on becoming aware of a personal data breach;

7.7. at the written direction of CONTROLLER, delete personal data in accordance with Clause 2 above or return personal data and copies thereof to CONTROLLER on termination of this Agreement unless required by Data Protection Legislation to store the personal data;

8. **Audits; Inquiries.**

8.1. PROCESSOR will provide all relevant information and assistance requested to demonstrate compliance with this Agreement and allow for and contribute to audits.

8.2. When responding to CONTROLLER's information or audit requests, PROCESSOR will inform CONTROLLER if it believes that any CONTROLLER instructions regarding personal data processing would violate the Data Protection Legislation.

9. **Indemnification.**

9.1. Each party will comply with any of its obligations under this Agreement or the Data Protection Legislation as required by the Act or UK GDPR.

9.2. In connection with the project, CONTROLLER hereby indemnifies PROCESSOR, its, directors, officers and employees (each an "Indemnified Person"), to the full extent lawful, against any loss, claim, damage or liability (or actions in respect thereof), including, without limitation, legal fees, costs and reasonable expenses incurred in connection with investigating or defending any claim or pending or threatened action, in each case, as such expenses are incurred or paid, (a "Loss") arising out of or relating to proceedings taken against PROCESSOR by any person (other than CONTROLLER) involved in the Project;

9.3. The Indemnity at clause 9.2 shall not apply where PROCESSOR or an Indemnified Person:

a) is in material breach of the Terms of this Agreement;

b) is guilty of a misrepresentation (fraudulent or otherwise) in relation to the Project; and/or

c) is guilty of bad faith, gross negligence or willful misconduct in the delivery of the project.

10. **Subcontracting**.

10.1. CONTROLLER authorizes PROCESSOR to transfer personal data to the sub-processors named in Schedule 1 (sub-processors) for purposes of providing the services described in this Agreement to CONTROLLER.

10.2. PROCESSOR will seek written authority from CONTROLLER prior to addition of further sub-processors.

10.3. PROCESSOR will enter into an Agreement with such sub-processors that is compliant with the Data Protection Legislation and meets the requirements of clause 7.

11. **Miscellaneous**.

11.1. Independent Contractor. Each party will be deemed to be an independent contractor and not an agent, joint venture, or representative of the other, and neither party may create any obligations or responsibilities on behalf of or in the name of the other party.

11.2. Variation. No variation of this Agreement shall be effective unless it is in writing and signed by the parties (or their authorised representatives).

11.3. Waiver. No failure or delay by a party to exercise any right or remedy provided under this Agreement or by law shall constitute a waiver of that or any other right or remedy, nor shall it prevent or restrict the further exercise of that or any other right or remedy. No single or partial exercise of such right or remedy shall prevent or restrict the further exercise of that or any other right or remedy.

11.4. Severance. The invalidity, illegality or unenforceability of any one or more provisions of this Agreement shall in no way affect or impair the validity, legality or enforceability of the remaining provisions, which shall remain in full force and effect.

11.5. Third party rights. This Agreement does not give rise to any rights under the Contracts (Rights of Third Parties) Act 1999 to enforce any term of this Agreement. The rights of the parties to rescind or vary this Agreement are not subject to the consent of any other person.

11.6. Governing law; Jurisdiction. This Agreement will be governed by and construed in accordance with English law. The courts of England will have exclusive jurisdiction to settle any dispute which arises out of or in connection with this Agreement and the parties hereby agree to submit to that jurisdiction.

This Agreement has been entered into on the date stated at the beginning of it.

LONDON BOROUGH OF <insert>	**LONDON COUNCILS**
_____	_____
Signature	Signature
_____	_____
Name	Name
_____	_____
Title	Title
_____	_____
Date	Date

Schedule 1 (Sub-Processors)

Organisation	Registered Address	Registration Number(s)	Data Protection Officer	Role(s)	Relevant schedule	Date Approved
Social Finance	87 Vauxhall Walk, London, SE11 5HJ	06402143		Data processing: Data platform ingress/processing/egress; IAM	Schedule 2	DPA Signing date
London Borough of Waltham Forest	Waltham Forest Town Hall Complex, Forest Road, Walthamstow, E17 4JF	N/A	Mark Hynes	Data Hosting Data Analysis: - Sharing Children's Services data insights - Sharing Children's Social Worker Workforce Census data insights - Sharing SEND insights	Schedule 3, Schedule 4, Schedule 6	DPA Signing date
Ealing London Borough Council	14 Uxbridge Rd, London W5 2HL	N/A		Data Analysis: - pan-London sufficiency analysis	Schedule 5	DPA Signing date
Social Care Network	First Floor, Boulton House, 17 Chorlton Street, Manchester, M1 3HY	3223082	Mark Collins	Data hosting: - pan-London sufficiency analysis	Schedule 5	DPA Signing date
Simpsons Associates	Regency House, York Business Park, Poppleton, York, North Yorkshire, YO26 6RW	3442572	Rachel Hillman	Data Analysis	Schedule 5	DPA Signing date

Schedule 2 (Data hosting, flows and security)

Context

The London Data Platform is a proposed data-sharing platform created by a partnership between LIIA, the Greater London Authority, and Social Finance, a not-for-profit consultancy with substantial technical and information governance expertise.

It is required because local public services, most notably local authority children's services, are increasingly finding it necessary to share personal sensitive data with one another and with suppliers in order to deliver on their statutory responsibilities.

Hosting data within the London Data Platform and running analysis within its secure environment will allow for increased data security, as it drastically reduces the risk of data breaches associated with email transfers, data downloads or holding data locally. The architecture of the platform has been designed specifically with this use-case in mind and it holds data security as its core principle. This architecture is detailed in "Data security" below. Social Finance will act as architectural principal for this project and will thus be responsible for the role of primary security contact and specifier. Amazon Web Services will be the service provider. Details of the appropriate certifications are outlined in the sections below.

Data flows

The data shared by the CONTROLLER goes through the following steps:

1. Upload data
2. Prepare data for analysis
3. Analyse data
4. Share analysis

These are expanded upon below and are represented in the data flow diagram (Figure 1).

The flows in steps 1 and 2 above are the same for all data processing activities covered by this agreement. Therefore, they are described in this schedule only.

The flows in steps 3 and 4 are specific to each processing activity (e.g. Pan-London Sufficiency Analysis involves different flows to Social Worker Workforce Analysis as they involve different organisations processing data). Therefore:

* Steps 3 and 4 are described in detail in the schedules created for each of those activities.

* The only material we provide here regarding steps 3 and 4 is a generic description (e.g. PROCESSOR does X rather than named organisation does X).

1. Upload data

The CONTROLLER is given access to a private folder in the London Data Platform and uploads the data there. This folder is only accessible by authorised personnel from the CONTROLLER and the London Data Platform.

2. Prepare data for analysis

i. Preparing the data of a single CONTROLLER

The PROCESSOR runs scripts within the London Data Platform environment to:

- Degrade certain data fields to protect data subject anonymity, e.g. date of birth transformed into month of birth; postcode transformed into postcode sector

- Assess data quality (missing values, logically inconsistent values)

At the end of this process, the data is pseudonymised. Identification of individuals would only be possible with access to the CONTROLLER's case management system.

The CONTROLLER's processed dataset is deposited back in the CONTROLLER's private folder; the CONTROLLER can download the processed dataset for analysis.

ii. Merging all Borough's data together

An additional process within the London Data Platform environment merges the datasets from all CONTROLLERS into a single pan-London dataset.

During this process, additional data minimisation and data degradation steps may occur to ensure that only the data required for pan-London analysis is accessible. These additional steps will be detailed in Schedules 3 onwards.

The processed dataset is deposited into the PROCESSOR's private folder ("LIIA Analysis folder") in the London Data Platform.

3. Analyse data

Typically, each specific analysis (e.g. Pan-London Sufficiency Analysis) requires only a subset of the full dataset. It may require:

- Fewer than the full set of data subjects (e.g. only children in care, rather than all children with a social worker)
- Fewer than the full set of fields describing each data subject (e.g. only information about the children's demographics and the placement, rather than information about needs and disabilities)
- Data from a shorter period of time than is available in the full dataset (e.g. just the last 12m)

Therefore, in line with the principle of privacy by design a specific dataset is created for each analysis which contains the minimum data required for that analysis. These are stored in the LIIA Analysis folder.

Access to each of these datasets in the LIIA Analysis folder is restricted to named individuals at the PROCESSOR (or named sub-processor) with direct involvement in analyses of that dataset, as described in Schedules 3 onwards.

The PROCESSOR accesses the dataset in the LIIA Analysis folder in one of two ways:

- Local download via a secure username/password combination. The dataset is then stored in a restricted area of the PROCESSOR's data warehouse with access granted only to staff directly involved in its analysis.
- Remote access via a secure link, connecting directly from within analytical software (e.g. Power BI). The dataset is stored in the cache of the analytical software only, with access granted only to staff directly involved in its analysis.

Analysis conducted on the processed dataset is described in the relevant Schedule below.

4. Share the analysis

Aggregated analytical outputs are shared with all Boroughs via securely hosted software (e.g. Power BI). In all shared outputs, it is no longer possible to identify individual data points. Boroughs will be identifiable in these shared analyses, allowing benchmarking and comparison between boroughs.

Where appropriate the LIIA d&i team will provide pan-London aggregate anonymous data for work commissioned or approved by ALDCS/LIIA or as agreed with partner organisations (where this data has already been collected through the LIIA CLD project) and so help reduce burdens on individual LA data & performance teams (relates to all use cases).

Data security for Steps 1 & 2

Folder access rights on London Data Platform

Access to any part of the platform requires individual access credentials (controlled through the platform identity and access management system and governed by appropriate security technologies i.e. single-sign on via major identity providers, password complexity and multi-factor authentication).

Controller's private folder - The CONTROLLER's private folder on the London Data Platform is created manually by the London Data Platform admin. Several staff members from the CONTROLLER can be given access to the folder.

The PROCESSOR will not be able to access the data hosted in the CONTROLLER's private folder. Beyond staff at the CONTROLLER, only London Data Platform admin will be able to access this data to grant access rights and initiate data processing.

LIIA Analysis folder - The LIIA Analysis folder on the London Data Platform is only accessible by authorised personnel from the PROCESSOR conducting the analysis and the London Data Platform admin and data engineer.

Data retention

Unless otherwise specified, data will be retained until six years have elapsed since data collection. Previous analysis finds that six years is the minimum for good quality journey analysis (an analytical approach we expect to employ), but that having more than six years' data does not materially help to answer new questions or answer existing questions with greater certainty or granularity.

Maintenance of this retention is implemented as part of the automated processing of data on the London Data Platform.

On termination of this agreement, all data will be deleted from the CONTROLLER's private folder and the LIIA Analysis folder.

The CONTROLLER can request the deletion of data at any time before the termination date.

London Data Platform infrastructure

The application is architected to be secure by design. It follows National Cyber Security Centre (NCSC) best practice for cloud applications and its use of Amazon Web Services for all core application components means that it is based on the most solid and robust of cloud platforms.

Specifically, it adheres to the NCSC guiding principles as follows:

Principle 1 - Data in transit protection

- The Data Platform will use the latest SSL certificates.
- Connections will be 128bit encrypted and authenticated using TLS 1.2. (data encrypted in transit)

Principle 2 - Asset protection and resilience

- Data will be hosted on Amazon Web Services (AWS) in a UK availability zone and a UK data centre.
- The AWS data centre is secure and highly monitored (full list of procedures in place available here).
- Data tables will be stored in AWS S3 buckets protected by a private key/user password combination. (data encrypted at rest)
- AWS is certified ISO 27001 (full list of AWS certifications available here).

Principle 3 - Separation between customers

- Robust use of Identity and Access Management (IAM) prevents users accessing or processing data or systems outside their own.

Principle 4 - Operational security

- The platform will be subject to robust and well-defined operational processes
- Releases will be timely and well managed through a deployment management framework
- Incident management will have clear procedures and communication will be timely

Principle 5 – Governance framework

- A governance framework will be established to clearly define feature extension signoff, administration oversight and eventual handoff of the system to a suitable long term owner as required.

Principle 6 - Personnel security

- AWS personnel are subject to robust vetting and security checks.
- Access to systems from inside the London Data Platform will be limited to those identified in the data flows section above.

Principle 7 –Secure development

- Engineering will follow software development best practices, including merge protections and code review
- Deployment will be automated and follow a test > release process across multiple environments before production
- Code will be subjected to multiple levels of automated and manual testing

Principle 8 - Supply chain security

- Software dependencies will be tracked and vulnerabilities automatically reported
- Dependencies in code run on the processing environment will be subject to a robust and well managed allow-list

Principles 9 and 10 - Secure user management/ Identity and authentication

- Uploads will be Private as default.
- Single-sign-on via major identity service providers (Microsoft Active Directory, Google Cloud Identity) will provide best in class password complexity enforcement and multi-factor-authentication requirements.
- A full audit log for user access and data movement will be recorded

Principle 11 - External interface protection

- Exposed user interfaces will follow best practice for user facing application security – including cross-site scripting protection and cross-site request forgery protection

- The minimum required API will be exposed to reduce the available attack surface to the smallest possible

Principle 12 – Secure Services Administration

- Administration of AWS services and infrastructure is carried out entirely through the AWS console and administration system which is subject to the resiliency and security principles laid down by Amazon themselves.

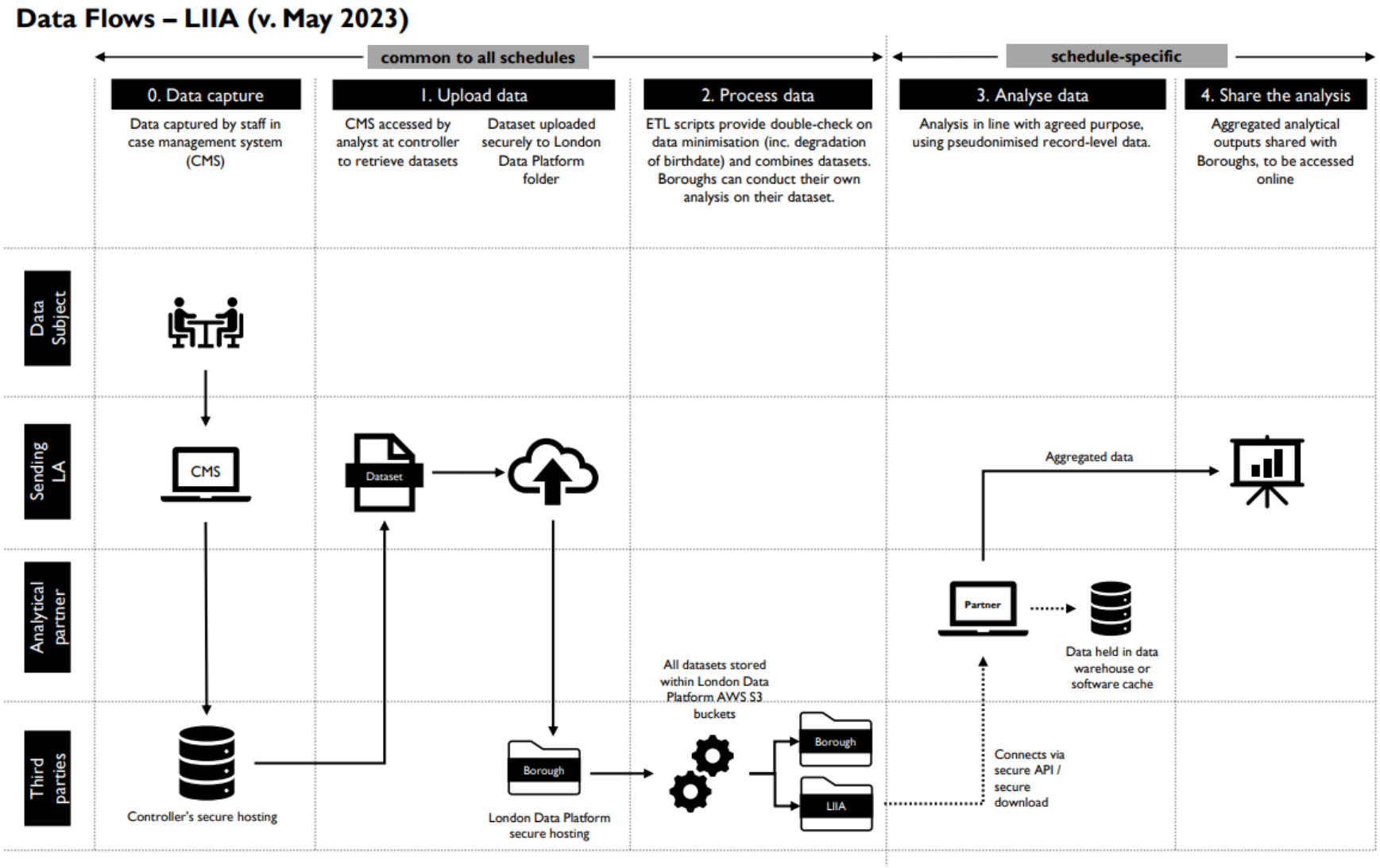
Principle13 - Resilience and auditing

- The application will be fully penetration tested before production release is granted.
- Regular security audits by qualified third-party organisations will be carried out.
- Data protection from loss and lack of availability on AWS is covered by their business continuity and disaster recovery policy.

Principle 14 – Security by Design and Default

- The design of the system is such that users are subject to guardrails which prevent accidental misuse.
- Code run on the platform will be sandboxed and airgapped from the wider internet
- Controls and role based access will prevent data leaking between users or clients

Figure 1 – LIIA data flows diagram



Schedule 5 (Pan-London sufficiency analysis)

This schedule provides details of the data flow for care episode data for looked after children through the LIIA platform. The data submitted by the CONTROLLER is the Children Looked After return (SSDA903).

Nature and purpose of analysis

The analysis will support Local Authorities to develop a better understanding of their respective Looked After Children populations and help them to determine if there is a sufficiency of local provision. Undertaking this work at a regional level will enable Local Authorities to identify themes/trends that may not be possible to identify at a local level. The analysis will also support benchmarking between differently Local Authorities and geographies.

The intention is that this analysis will support Local Authorities to meet their Sufficiency Duty in respect of Section 22G of the Children Act 1989. This Act places a duty on Local Authorities to take steps that secure, so far as is reasonably practicable, sufficient accommodation for looked after children within their local area. This Duty was further outlined in Statutory Guidance issued by the Department for Education in 2010 which made explicit the requirement for Local Authorities to act strategically to address gaps in provision by ensuring that plans to meet this Duty were included in relevant commissioning strategies.

Details of analysis

The analysis addresses many questions that are central to developing effective commissioning strategies such as:

- the distances children are placed from their homes, and any demographic factors that may lead to an increase in the likelihood that a young person is placed out of area
- how placement quality, as assessed by Ofsted, interacts with care episode stability
- the quality of outcomes for children from minority groups
- the utilisation of local provision and if there are specific gaps in supply

Data to be shared

The data submitted by the CONTROLLER will include personal data, including special category data, about children and young people who have, in the six years prior to the analysis, been:

- considered 'looked-after' within the meaning of the Children Act

Personal data, including special category data to be processed:

- unique identifiers, including LA-issued identifiers
- demographic information, including gender, date of birth and ethnicity
- geographic identifiers, including home postcode, looked after placement postcode and Ofsted-issued placement unique reference number
- Children's Services episode information, including dates, need codes, legal status and outcomes, for care placement episodes

Data minimisation

In consideration of the data required to produce the analysis, we have minimised the scope of individuals whose data are shared to only include individuals who have been considered 'looked-after' under the meaning of the Children's Act 1989, in the six years prior to analysis.

Accordingly, in the course of data processing by the London DataStore (Step 2 in Schedule 2), all information is removed about:

- children of looked after children

- children who have been placed for adoption (who have not also been 'looked-after' in the same time period)
- adopters of children
- care leavers

For data subjects who are in the scope of the analysis, we have evaluated whether any fields containing identifiers and personal, sensitive information are required to conduct the analysis. Accordingly, in the same process above, the following data minimisation occurs:

- Unique pupil number
- Date of birth degraded to month of birth (30x reduction in specificity)
- Postcodes (home and placement) degraded to postcode districts (~540x reduction in specificity)

Details of data processing

Data deposit by CONTROLLER and data processing on London DataStore occur as described in steps 1 & 2 of Schedule 2. Social Finance analysts created the code that processes the data on the London DataStore. The code is released to London DataStore as a PyPI package in a publicly accessible repository on GitHub. QA testing will be performed before it is deployed on the London DataStore.

The sub-processor responsible for analysis and sharing of data, as described in steps 3 & 4 of Schedule 2, is London Borough of Ealing, and named sub-processors, detailed below and in Schedule 1.

Data in the LIIA Analysis Folder is accessed through secure download to a MS Azure data warehouse hosted by Social Care Network (SCN). The warehouse is independent of any other data sources and maintained exclusively for London Borough of Ealing. Data stored in SCN's data warehouse is encrypted using TLS 1.2, while in transit and at rest. All data is stored and backed up in the UK with access managed through 2-factor authentication. SCN are Cyber Essentials Plus certified. Full data security protocols employed by SCN can be found in Appendix 1 to this Schedule.

Data joining

Data in London Borough of Ealing's data warehouse will be joined to data from Ofsted produced reports about placement providers, including data relating to placement cost and quality. This joining will be performed on information relating to care placements, and not on information relating to individual children. All joining will be performed in the Azure data warehouse hosted by SCN.

The joining will take place using the following fields from the SSDA903:

- placement URN
- placement postcode (at postcode district level)

The purpose for adding this additional data to the SSDA903 data is to allow analysis of the outcomes of episodes of care using child-level information from the SSDA903 alongside the quality and cost of placement providers using placement-level information from the Ofsted reports.

Details of analysis

The dataset is used to generate a Power BI report that will display analyses that aggregate above the level of the individual. Many different levels of aggregation will be presented, at the level of:

- number of children placed in Borough X from Borough Y
- number of children placed in postcode district X from Borough Y
- number of children placed at a list of placement providers in postcode district X from Borough Y

All analyses created allow individual Boroughs to be identified.

Risk of individual re-identification

Users of the report will be able to filter visualisations in the report to sub-divide children by demographic variables, such as age, gender and ethnicity, as well as by additional dataset-specific variables, such as whether the child's previous placement ended in 'breakdown'.

In visualisations that display the number of children from a Borough placed in a specific placement type in a selected postcode district, this has the potential to describe very small numbers of children, potentially as low as a single child. This is because the density of placements may be very low in less populated areas and the capacity of some placement types is also low.

Though a single child may be described in this way, no directly identifiable data about that child, such as an identifier or date of birth, can be accessed by the user. This functionality does increase the risk, however, that a child becomes re-identifiable due to the circumstances of their Borough of origin, their demographic profile and their placement location.

A way to mitigate against this would be to set a threshold for the minimum number of children that a visualisation will display data about. However, given the very low capacity (<= 4 beds) of some of the placement types of most interest to Commissioners in this kind of analysis, setting such a threshold would likely unacceptably reduce the value of the analysis. Therefore, no lower threshold is proposed for this analysis.

Security of hosting

The Power BI report is hosted by London Borough of Ealing. Only analysts directly involved in the project working for London Borough of Ealing, Social Care Network and Simpsons Associates can access the SCN Azure warehouse for this purpose. Access is maintained by London Borough of Ealing and provided via Azure Active Directory. All Simpson Associates consultants have Security Check (SC) clearance. Simpsons Associates hold ISO 270001 and ISO 9001, Cyber Essentials and Cyber Essentials Plus certificates and regularly work with LAs, police forces and healthcare trusts.

Sharing of analysis

Commissioning Alliance share the Power BI report with named individuals only. Individuals with access to the report from each London Borough will be agreed by the London Borough and communicated to London Borough of Ealing. Access to the report is individually password protected, with sharing to new individuals only possible by London Borough of Ealing analysts. Existing links shared to individuals who do not have access will not provide access to the report. Dissemination of these aggregate analyses to individuals from organisations other than the London Boroughs, such as with placement providers, will be managed in line with Memoranda of Understanding between the ACDCS and LIIA Board. Such sharing is likely to greatly increase the value of the analyses produced, as it will enable communication of outputs to both the creators and suppliers of the demand for care placements.

Responsibility for security and accuracy of data flows will be as follows:

Responsibility	Responsible party
Deposit of data to Social Finance data platform	CONTROLLER
Processing of data on Social Finance data platform – individual level data is shared following this agreement	Social Finance
Processing of data in Social Care Network data warehouse – individual level data is accessed following this agreement	London Borough of Ealing
Access to Borough level report in Power BI – sharing of analysis	London Borough of Ealing

Endorsement by London Children's Innovation and Improvement Board: 11/05/2022

Approved by SENDING LA as amendment to DPA: [date]

Signature

Name

Role

Q2 2023 amendments to Schedule 5

Following the launch of this use case and the sharing of reporting with Boroughs, we propose expanding the data that is shared for reporting, predominantly to include placement cost data. The nature and purpose of the data sharing remains the same, but the scope has been expanded in terms of the types of data that are being shared about the same individuals. As the subjects whose data is being shared and the nature and purpose of sharing remains the same, we propose amending this existing use case, rather than creating a new one.

One change relates to the request to share data from the existing statutory returns relating to care leavers that had previously been removed from the data shared for this use case.

Additionally, we request the sharing of new data that cannot be found in any existing statutory returns. This will require new data to be shared via a bespoke dataset, the specification of which is included as an appendix to this Schedule. New fields are highlighted in yellow.

The data sharing mechanism and the reporting that will be driven by this new data will remain the same as previously.

Initially, the new data will be shared by five pilot LAs (Barking & Dagenham, Barnet, Brent, Croydon, Wandsworth), but we ask here for all LAs to agree to the sharing of the new data to enable rapid scaling beyond the pilot phase.

Details of analysis

In addition to the existing analyses, the new dataset will address questions such as:

- do London Boroughs spend comparable sums on children's placements:
    - in total
    - across placement types
    - with specific providers
- does spend on placements scale with the underlying needs of the child as captured in assessments
- how do costs change over time

Including data on care leavers from the existing statutory return will address questions such as:

- which placements result in good outcomes for children, as measured by their activity (employment, education etc.) and accommodation after the child leaves care

Data to be shared

Data submitted by the CONTROLLER (additional to the existing Schedule) will include personal data, including special category data, about children and young people who have, in the six years prior to the analysis, been:

- considered 'looked-after' within the meaning of the Children Act
- previously been 'looked-after' and had their 17th to 25th birthday in the reporting period

Additional personal data, including special category data to be processed:

- disability data
- category of need identified at assessment
- information about Educational Health Care Plans

The disability and category of need data referenced is already being shared by Boroughs as part of the Sharing Children's Services data insights use case detailed in Schedule 3.

In addition, commercial information about placement commissioning will be processed, including:

- the cost of placements
- the procurement mechanism e.g. spot purchase

The additional data shared does not increase the risk of individual re-identification of any of the data subjects.

Details of data processing

In alignment with all other use cases of this agreement, data processing will occur as described in Schedule 2 of this agreement, with the amendments to processing as described there.

Data analysis and data sharing

There are no amendments to the nature of data analysis and sharing, nor to any of the processors involved.

Responsibility for security and accuracy of data flows will be as follows:

Responsibility	Responsible party
Deposit of data to Social Finance data platform	CONTROLLER
Processing of data on Social Finance data platform – individual level data is shared following this agreement	Social Finance
Processing of data in Social Care Network data warehouse – individual level data is accessed following this agreement	London Borough of Ealing
Access to Borough level report in Power BI – sharing of analysis	London Borough of Ealing

Approved by SENDING LA as amendment to DPA: [date]

Signature

Name

Role

Schedule 5 Appendix 1: Social Care Network Security and Compliance Overview

Penetration Tests

The most recent, independent Pen Test was completed in 2022. The test has proven more than satisfactory.

2 Factor Authentication

By default, SCN's CHARMS application uses a 2-step process to authenticate users, involving a username/password combo followed by selected characters from a passphrase. These mimic the way banks in the UK allow access to online applications.

Software Development Lifecycle

SCN's software is developed using C# and ASP.Net and runs on Windows Servers using Microsoft SQL Server as the data store. As code is written it is checked by VeraCode, a static code analysis tool which

identifies any vulnerabilities that may have been written into the codebase by developers. Security Testing of beta releases are undertaken by the security Architect. Internal Pen Testing is undertaken at every major release by SCN.

Defence in Depth

SCN's philosophy is defence in depth. All data is encrypted using TLS 1.2 to servers, a Web Application Firewall analyses the requests to reject any injection or client-side attacks, and IIS is set to implement the strongest security available. Code is scanned by VeraCode, ASP.Net security is enabled, all internal traffic is sent over HTTPS, and all the data in the database is encrypted, both in transit and at rest. Transparent Data Security, TDS, in SQL Server is used to achieve this.

Backups

Backups are taken every day and managed by the cloud provider. This ensures that there is no member of staff at SCN who could delete backups. Backups are available for 6 months. Transaction logging is used to enable any problems with data after the last backup and before the next.

Multi-Tenanted Solution

SCN's applications are delivered as off the shelf, Software as a Service solutions, SAAS. Customers have their own Website and Database implementation on our infrastructure which is provided by UKFast. Data is stored in two datacentres, on either side of the city of Manchester, to ensure availability. All hardware infrastructure is mirrored in each datacentre. One datacentre acts as the failover - all activity in the prime datacentre is immediately updated to the failover datacentre in real time.

Certifications

SCN is Cyber Essentials Plus certified and is starting the ISO 27001 certification process. The infrastructure provider UKFAST is ISO 27001 certified and also ISO 27018, ISO 9001 and ISO 22301.

Data Storage

All data is stored in the UK and backed up in UK.

Availability and resilience

100% Connectivity Availability - This is access to the infrastructure
99.5 Application Availability - This is access to the application.

Schedule 5 Appendix 2: Specification of new placement costs dataset

List of fields (data not previously shared highlighted in yellow):

Module: Child-level placement costs

- Child ID
- Date of birth
- Ethnicity
- Gender
- Disability
- Category of need
- Date of last assessment
- Does the child have an EHCP?
- Is the child UASC?
- # of missing episodes in current period of care
- Legal status
- Placement start date
- Placement end date
- Date of start of current care period
- Reason for placement change
- Number of placements in last 12 months
- Number of placements in current care period
- Placement type

- Placement provider
- Provider type
- Procurement platform
- Procurement framework
- Ofsted URN
- Home postcode
- Placement postcode
- LA of placement
- Total committed cost accrued in financial year to date
- Contribution from social care provider
- Contribution from health provider/s
- Contribution for education provider/s

Module: Children's Homes placement costs

- Asset name
- Ofsted URN
- Start date
- End date
- Total committed cost accrued in financial year to date